

IN THE SENATE

SENATE BILL NO. 1315

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO HOSPITALS; AMENDING CHAPTER 13, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1397, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING MATERNITY PRICE TRANSPARENCY AND DISCLOSURE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 13, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-1397, Idaho Code, and to read as follows:

39-1397. MATERNITY PRICE TRANSPARENCY AND DISCLOSURE. (1) In addition to reporting compliance with the federal hospital price transparency requirements of 45 CFR 180, every hospital licensed under this chapter that provides labor and delivery services shall ensure that its consumer-friendly price estimator portal displays a comprehensive quote for a maternity episode of care. This quote shall be available on a single dedicated page that is accessible by a single click from the portal's main pricing index.

(2) Every hospital described by subsection (1) of this section shall create and maintain a clearly labeled, single-click entry point page within its publicly available price estimator tool for both a vaginal birth episode of care and a cesarean birth episode of care.

(3) Each episode of care page required pursuant to subsection (2) of this section shall display:

(a) An episode of care price, including an all-inclusive price or itemized list of all standard services and fees for the applicable diagnosis-related group related to an uncomplicated labor and delivery, whether vaginal, cesarean, or vaginal birth after cesarean, including intake, room and board, delivery, antepartum care, postpartum care, blood tests, and routine level I newborn care;

(b) Common additional charges, including an itemized price list that includes fees for services such as epidural, anesthesia, episiotomy, circumcision, vacuum extraction, forceps, and lactation consultation; and

(c) A mandatory disclosure statement specifying that the numbers provided represent a price disclosure for an uncomplicated birth and cannot predict additional costs associated with unforeseen complications.

(4) A hospital licensed in this state shall not enter into a contract that prevents it from offering a discounted cash price for labor and delivery health services below other contracted rates with either commercial or public payers or that prevents the hospital from disclosing its discounted cash price to patients. Any clause in an existing contract that violates this subsection is void and unenforceable to the extent of the conflict.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.